

STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE:)
DANIEL RAFFERTY) Docket No. 2012-503
License No. 097.0082825)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through State Prosecuting Attorney S. Lauren Hibbert, and the Respondent, Daniel Rafferty, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 127, 129, 129a; 26 V.S.A. Chapter 78; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Stipulated Facts

2. Daniel Rafferty (the "Respondent") of Waterbury Center, Vermont is rostered by the State of Vermont as a Non-Licensed & Non-Certified Psychotherapist under number 097.0082825. Respondent was originally placed on the roster November 18, 2011 and his roster expires on or about November 30, 2014.
3. At all times relevant, Respondent worked at True North (the "Facility").
4. Respondent began working at the Facility on or about October 10, 2011.
5. Vermont's statute pertaining to the roster defines "psychotherapy" in 26 V.S.A. § 4082(4) but is silent regarding the practice of shadowing and observing psychotherapy for an employer. Respondent did not know he was required to be on the roster while he was shadowing and observing at the Facility.
6. Respondent unknowingly practiced psychotherapy in Vermont before he was placed on the roster.
7. Pursuant to 3 V.S.A. § 129(a)(3) the Board determines that Respondent's conduct

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Professional Regulation
89 Main Street
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05620-3402

in this case relates to administrative duties not related to patient, client, or customer care. The monetary civil penalty imposed below *does not constitute a finding of unprofessional conduct*.

8. Respondent worked without proper licensure or being on the roster for approximately one month.

Violations

9. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent, albeit unknowingly, violated 3 V.S.A. § 127 (b) by practicing a regulated profession without authority.

Understandings

10. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
11. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
12. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
13. Respondent is not under the influence of any drugs or alcohol at the time of signature of this Stipulation and Consent Order.
14. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
15. Respondent voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
16. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. Since this violation occurred only in respect to the Respondent's noncompliance with administrative duties, the Board does NOT make a finding of unprofessional

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conduct, but rather imposes a MONETARY CIVIL PENALTY IN THE AMOUNT OF ONE HUNDRED DOLLARS (\$100) on the Respondent. This penalty is to be paid within ninety (90) days of the date of entry of this Order.

- B. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).
- D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.
- E. This Stipulation and Consent Order resolves all matters investigated and charged in connection with Docket No. 2012-503.

AGREED TO:

Dated:

4/3/14

STATE OF VERMONT
SECRETARY OF STATE

By:


S. Lauren Hibbert
State Prosecuting Attorney

DANIEL RAFFERTY
RESPONDENT

Dated:

March 27, 2014

By:


Daniel Rafferty

APPROVED AS TO FORM:

Dated:

April 3, 2014

ATTORNEY FOR RESPONDENT

By:


Eileen Elliot, Esq.

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH
PRACTITIONERS

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
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Dated: 4/17/14

By: Margie Lombly
Chairperson

Date of Entry: 4/18/14

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Prosecuting Attorney
Office of
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Montpelier, VT
05620-3402